

UZBEKISTAN 2013 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

Uzbekistan is an authoritarian state with a constitution that provides for a presidential system with separation of powers among the executive, legislative, and judicial branches. The executive branch under President Islam Karimov dominated political life and exercised nearly complete control over the other branches of government. In 2007 the country elected President Karimov to a third term in office in polling that, according to the limited observer mission from the Organization for Security and Cooperation in Europe (OSCE), deprived voters of a genuine choice. Parliamentary elections took place in 2009. While OSCE observers reported noticeable procedural improvements in comparison with the 2004 parliamentary elections, the 2009 elections were not considered free and fair due to government restrictions on eligible candidates and government control of media and campaign financing. There were four progovernment political parties represented in the bicameral parliament. Authorities maintained effective control over the security forces. Security forces committed human rights abuses.

The most significant human rights problems included: torture and abuse of detainees by security forces; denial of due process and fair trial; and widespread restrictions on religious freedom, including harassment of religious minority group members and continued imprisonment of believers of all faiths.

Other continuing human rights problems included: incommunicado and prolonged detention; harsh and sometimes life-threatening prison conditions; arbitrary arrest and detention; restrictions on freedom of speech, press, assembly, and association; governmental restrictions on civil society activity; restrictions on freedom of movement; violence against women; and government-organized forced labor. Authorities subjected human rights activists, journalists, and others who criticized the government, as well as their family members, to harassment, arbitrary arrest, and politically motivated prosecution and detention.

Government officials frequently engaged in corrupt practices with impunity.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

There were no confirmed reports that the government or its agents committed arbitrary or unlawful killings.

In April human rights activist Marat Zahidov reported that 63-year-old-Tursunali Sodikov died of a heart attack on April 6, the day after Aziz Toshpulatov, the local police chief in Yangiyul District of Tashkent Region, reportedly beat Sodikov for arriving late to a meeting. Sodikov's son Davron confirmed his father's death to the press, and independent press and human rights activists reported police arrested Toshpulatov on May 1.

The government, citing information from the Office of the General Prosecutor, reported that it had no record of the October 2012 death of 18-year-old Navruz Islomov. Press reports alleged that Islomov died from a beating administered by police officers who confronted him as he attempted to leave the cotton fields.

The government continued its policy of not authorizing an independent international investigation of the 2005 alleged killing by government forces of unarmed civilians in Andijon. The government's 2005 investigation claimed that armed individuals initiated violence by firing on security forces. The death toll varied between the government's report of 187 and eyewitnesses' reports of several hundred individuals killed. To date the government has not held anyone publicly accountable for the civilian casualties. During its April Universal Periodic Review before the United Nations Human Rights Council, the government declared that it considered the Andijon issue "closed."

b. Disappearance

There were no reports of politically motivated disappearances. Unconfirmed reports persisted regarding disappearances of persons who were present at the 2005 violence in Andijon.

In its 2012 annual report, the UN Working Group on Enforced or Involuntary Disappearances noted that it transmitted one new case concerning Usmon Rakhimov to the government under its urgent action procedure during the year. There were also seven outstanding cases from previous years. The government did not respond to the Working Group's 2011 request for an invitation to visit.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

While the constitution and law prohibit such practices, law enforcement and security officers routinely beat and otherwise mistreated detainees to obtain confessions or incriminating information. Sources reported that torture and abuse were common in prisons, pretrial facilities, and local police and security service precincts. Reported methods of torture included severe beatings, denial of food, sexual abuse, simulated asphyxiation, tying and hanging by the hands, and electric shock. There also were continued reports that authorities exerted psychological pressure on inmates, including threats against family members.

In a 2010 publication, the UN Human Rights Committee expressed concerns that the country's definition of torture in the criminal code is not in conformity with the Convention against Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, to which the country is a party. Several civil society organizations called for the government to accede to a visit by the UN special rapporteur on torture and other cruel, inhuman, or degrading treatment or punishment. The special rapporteur's most recent country assessment occurred in 2003.

In January the Ezgulik Human Rights Society reported that three police officers from the Yunusobod District Police Department in Tashkent severely beat 30-year-old Jamshid Sharofutdinov in November 2012, resulting in his hospitalization in the Tashkent Medical Academy. The Ministry of Interior responded that Sharofutdinov "in a severely intoxicated state" assaulted a police officer who responded to a citizen's complaint about Sharofutdinov. Without directly commenting on the allegations of police brutality, the ministry stated that the responding officer, A.J. Turdimuradov, was hospitalized for 20 days, and a criminal case was brought against Sharofutdinov. There was no further information available at year's end.

The government, citing a report from the Yunusobod District in Tashkent's Forensic Medical Department, stated that 40-year-old Shovkatjon Nurmatov died in December 2012 of an "active duodenal ulcer." His family alleged he was mistreated while in custody, but the government denied the accusation.

In July, Ezgulik reported the National Security Service (NSS) arrested Utkir Norshodiev, deputy head of the Samarkand Municipal Internal Affairs Department, based on allegations that Norshodiev headed a group that subjected detainees to cruel, inhuman, or degrading treatment. Police officials confirmed the arrest to Ozodlik Radio, but there was no further information available at year's end.

In February, Dilmurod Sayid, a journalist who was sentenced to 12 and one-half years in prison in 2009 on extortion and bribery charges, passed a letter through his brother, writing that he had been mistreated by officials in Prison UYa 64/36 in Navoi. Sayid also alleged that prison authorities prevented him from sending letters to his relatives and seized his poems and short stories. According to his relatives, prison officials placed Sayid in isolation for 10 days as punishment for passing the letter.

The government denied as “unsubstantiated inventions” allegations that officers from the Mirobod District police department in Tashkent allegedly subjected 20-year-old Anton Khizhnyakov to torture in March 2012 to extract a confession for a crime that he said he did not commit. The government stated that neither Khizhnyakov nor his lawyer, Rano Abdullaeva, raised the allegations of torture during the former’s trial. The Human Rights Alliance of Uzbekistan, however, contended that authorities tortured Khizhnyakov.

Throughout the year authorities reportedly meted out harsher-than-typical treatment to individuals suspected of Islamist extremism. Local human rights workers reported that authorities often offered payment or other inducements to inmates to beat other inmates suspected of religious extremism.

Family members of several inmates whom the international community considered political prisoners asserted that officials did not grant prisoners’ requests for medical evaluation and treatment. Among these prisoners were Agzam Turgunov, Salijon Abdurakhmanov, and Dilmurod Sayid.

Prison and Detention Center Conditions

Prison conditions were in some circumstances harsh and life threatening.

Physical Conditions: The government reported that there were approximately 46,200 prisoners, an increase of an estimated 4,000 prisoners since 2009. The government stated that the prison population dropped by 50 percent between 2000 and 2012, but this figure could not be verified. Men, women, and juvenile offenders were held in separate facilities. There were reports that in some facilities inmates convicted of attempting to overturn the constitutional order were held separately, and prison officials did not allow inmates convicted under religious extremism charges to interact with other inmates.

Reports of overcrowding were common, as were reports of severe abuse and shortages of medicine. The government stated, however, that its 58 penitentiary facilities on average were 80 percent occupied. Inmates generally had access to potable water; however, inmates and their families reported that although generally available, water and food were of poor quality. Relatives of prisoners in some instances complained that prison diets did not include sufficient amounts of meat. There were reports of political prisoners being held in cells without proper ventilation and subjected to extreme temperatures. Family members also reported that officials frequently withheld or delayed delivery of food and medicine intended for prisoners. Unlike in past years, family members of inmates did not report any incidents of sexual abuse.

Prison administration officials reported that the World Health Organization had an active tuberculosis program in the prisons to treat and stop the spread of tuberculosis and an HIV/AIDS treatment and prevention program. Officials reported that hepatitis was not present in high numbers and that hepatitis patients were treated in existing medical facilities and programs.

Relatives reported the deaths of several prisoners serving sentences. In some cases family members reported that the body of the prisoner showed signs of beating or other abuse, but authorities pressured the family to bury the body before examination by a medical professional. In April the French-based Association for Human Rights in Central Asia reported on the March 30 death in custody of 38-year-old former police officer Umid Akhmedov. According to the report, witnesses stated that Akhmedov's body showed signs of mistreatment, including hematomas and a deep cut on his neck, when handed over to his family members, who were told to bury the body immediately and prohibited the family from undertaking forensic medical examination of the body. Other reported cases that fit this pattern included the deaths of 43-year-old Dilshod Iskhokov in May, 32-year-old Khusniddin Okkuziev in July, and 35-year-old Samariddin Salokhiddinov in October.

The government asserted that Abdurahmon Sagdiev died in February 2012 as the result of injuries suffered during a fight with another prisoner, Umid Kholmatov, and not as a result of mistreatment at the hands of prison authorities. Nongovernmental organization (NGO) observers contended that Sagdiev died as a result of mistreatment by prison guards.

Administration: According to the law, authorities at pretrial detention facilities are required to arrange a meeting between a detainee and a representative from the

Human Rights Ombudsman's Office upon the detainee's request. Officials allowed detainees in prison facilities to submit confidential complaints to the Ombudsman's Office and to the Prosecutor General's Office, and both offices were authorized to initiate investigations into complaints. The Ombudsman's Office is empowered to make recommendations on behalf of prisoners, including requesting changes to sentences to make them more appropriate to nonviolent offenders.

There was no information available regarding whether recordkeeping on prisoners was adequate or whether authorities took steps to improve recordkeeping. Authorities in limited cases used administrative measures as alternatives to criminal sentences for nonviolent offenders. In addition the criminal code mandates several instances in which courts cannot sentence individuals to prison if full restitution has been made.

Prison officials generally allowed family members to visit prisoners for up to four hours two to four times per year. There were, however, reports that relatives of prisoners charged with religious or extremism charges were denied visitation rights. Officials also permitted visits of one- to three-days' duration two to four times per year, depending on the type of prison facility. Family members of political prisoners reported that officials frequently delayed or severely shortened visits arbitrarily. The government stated that prisoners have the right to practice any religion or no religion, but prisoners frequently complained to family members that they were not able to observe religious rituals that conflicted with prison scheduling. Such rituals included engaging in traditional Islamic morning prayers. Although some prison libraries had copies of the Koran and the Bible, there were complaints from family members, as in past years, that prisoners were not allowed access to religious materials.

According to government press reporting, on August 5, updated rules for the internal order of penitentiary facilities entered into force. The guidance defines additional rights afforded to prisoners and circumstances in which restrictions to these rights can be introduced. The new rules outline procedures for prisoners to "participate in religious worship and 'family relations' such as marriage." The rules provide "close relatives" with the right to receive oral and written information from prison officials about the health and disciplinary records of their family members in incarceration. The families of prisoners continued to report a lack of communication and information from family members in prison, however, and stated that the government continued to withhold information about health and prison records.

According to family members and some NGOs, authorities failed to release prisoners, especially those convicted of religious extremism, at the end of their terms. Prison authorities often extended inmates' terms by accusing them of additional crimes or claiming the prisoners represented a continuing danger to society. On April 8, the Gazalkent District Court in Tashkent Region sentenced Mamadali Makhmudov to an additional three years in prison following a closed hearing during which he was charged with 31 instances of "violating internal prison rules," although he later was released. Trials for such offenses took place within the prisons, and defendants often were not given access to lawyers or relatives. Although it is technically possible for inmates to appeal such decisions, many inmates did not have the expertise to initiate an appeal.

Independent Monitoring: In April the International Committee of the Red Cross (ICRC) announced that it was terminating its program designed to monitor conditions of detention and the treatment of detainees. The ICRC cited an inability to follow its standard working procedures and the lack of constructive dialogue with the government. The government responded by terming the ICRC's decision "unilateral" and stated that the ICRC failed to meet all of the terms of its agreement with the government, including violating confidentiality provisions.

As in the past year, independent observers from the international community gained limited access to some parts of the penitentiary system, including pretrial detention facilities, juvenile and women's prisons, and prison settlements. Authorities granted observers access only to certain prisons and to limited areas within these prisons.

Improvements: On August 26, the Initiative Group of Independent Human Rights Defenders of Uzbekistan reported that prison authorities in Zarafshan (Navoi Region) improved the detention conditions of Isroil Alimov after his mother, Vazira Alimova, complained in early July that she had not been able to see her son and that her "care packages" either were refused or stolen by penitentiary facility employees. Officials at maximum security prison 64/48 granted Alimova a three-day visit with Isroil and allowed her to pass him clothing and foodstuffs. In October 2000 the government had sentenced Alimov to 15 years in prison for membership in Hizbut-Tahrir as well as attempting to overthrow the constitutional order.

d. Arbitrary Arrest or Detention

The constitution and the law prohibit arbitrary arrest and detention, but authorities continued to engage in such practices. For example, on September 21, police in Urgench detained independent journalist Sergey Naumov. Friends, family, and colleagues were unable to ascertain his whereabouts for more than 36 hours before learning that he had been sentenced to 12 days' administrative detention for "petty hooliganism." He was released after the 12-day period concluded.

Role of the Police and Security Apparatus

The government authorizes three different entities to investigate criminal activity. The Ministry of Interior controls the police, who are responsible for law enforcement and maintenance of order and investigate general crime. The NSS, headed by a chairman who reports directly to the president, deals with a broad range of national security and intelligence problems, including terrorism, corruption, organized crime, and narcotics. Prosecutors investigate violent crimes such as homicide as well as corruption by officials and abuse of power. Where jurisdictions overlap, the agencies determine among themselves which should take the lead. The ministry's main investigations directorate has internal procedures to investigate abuses and discipline officers accused of human rights violations, but the government rarely punished officials who committed human rights abuses. A human rights and legal education department within the ministry investigated some police brutality cases. The Human Rights Ombudsman's Office, affiliated with parliament, also has the power to investigate cases, although its decisions on such investigations have no binding authority.

In July the government reported that Shakhrisabz District Criminal Court police officer Anvar Holiyorov, convicted of dereliction of duty leading to the November 2011 suicide in police custody of Almardon Berdikulov, was freed from punishment in connection with the December 2011 amnesty.

Arrest Procedures and Treatment of Detainees

By law a judge must review any decision to arrest accused individuals or suspects. Judges granted arrest warrants in most cases. Defendants have the right to legal counsel from the time of arrest, although officials did not always grant that right and occasionally forced defendants to sign written statements declining the right to counsel.

Detainees have the right to request hearings before a judge to determine whether they remain incarcerated or are released. The arresting authority is required to

notify a relative of a detainee about the detention and to question the detainee within 24 hours of being taken into custody. Suspects have the right to remain silent and must be informed of the right to counsel. Detention without formal charges is limited to 72 hours, although a prosecutor can request an additional 48 hours, after which time the person must be charged or released.

Authorities continued to hold suspects after the allowable period of time. The judge conducting the arrest hearing is allowed to sit on the panel of judges during the individual's trial. There were complaints that authorities tortured suspects before notifying either family members or attorneys of their arrest in order to gain confessions that could be used as the basis for convictions.

Once authorities file charges, suspects can be held in pretrial detention for up to three months while investigations proceed. The law permits an extension of the investigation period for up to one year at the discretion of the appropriate court upon a motion by the relevant prosecutor, who may release a prisoner on bond pending trial. Authorities frequently ignored these legal protections. Those arrested and charged with a crime may be released without bail until trial on the condition that they provide assurance of "proper behavior" and that they will appear at trial. State-appointed attorneys are available for those who do not hire private counsel.

A decree requires that all defense attorneys pass a comprehensive relicensing examination. Several experienced and knowledgeable defense lawyers who had represented human rights activists and independent journalists lost their licenses after taking the relicensing examination. As a result several other activists and defendants faced difficulties in finding attorneys to represent them. Although unlicensed advocates cannot represent individuals in criminal and civil hearings, a court has the discretion to allow such a public advocate if the advocate belongs to a registered organization whose members are on trial.

There were reports that police arrested persons on false charges of extortion, drug possession, or tax evasion as an intimidation tactic to prevent them or their family members from exposing corruption or interfering in local criminal activities.

Arbitrary Arrest: Authorities continued to arrest persons arbitrarily on charges of extremist sentiments or activities and association with banned religious groups. Local human rights activists reported that police and security service officers, acting under pressure to break up extremist cells, frequently detained and mistreated family members and close associates of suspected members of religious

extremist groups. Coerced confessions and testimony in such cases were commonplace.

The government stated that Uktam Pardaev, the head of the Jizzakh branch of the unregistered Independent Human Rights Society of Uzbekistan, did not submit a complaint to prosecutors concerning his allegations that he was not fed for two days and was housed with detainees with infectious diseases after he was detained in September 2012 on public disorder charges.

Pretrial Detention: In general prosecutors exercised discretion over most aspects of criminal procedures, including pretrial detention. Detainees had no access to a court to challenge the length or validity of pretrial detention. Even when authorities did not file charges, police and prosecutors frequently sought to evade restrictions on the length of time that a person could be held without charges by holding them as witnesses rather than as suspects. During the year pretrial detention typically ranged from one to three months. The government did not provide information regarding the number of persons held in pretrial detention centers.

Amnesty: In December the Senate approved a prisoner amnesty. According to its terms, women, underage offenders, men over age 60, foreign citizens, and persons with disabilities or documented serious illnesses were eligible. The bill also included first-time offenders convicted of participation in banned organizations and the commission of crimes against peace or public security who “have firmly stood on the path to recovery.” As in previous years, the amnesty foresaw (with some exceptions) reducing by one-third the prison terms of all convicts sentenced to up to 10 years in prison and by one-fourth for those sentenced to more than 10 years in prison. The resolution excludes from the amnesty those sentenced to life and “lengthy” terms in prison, repeat offenders, and those who “systemically have violated the terms of incarceration.” Amnesty options included release from prison, transfer to a work camp, or termination of a criminal case by a court at the pretrial or trial stage. Human rights activists expressed concern that individuals imprisoned for religious extremism or on political grounds were not released under the amnesty, although they met criteria for inclusion. Examples included Salijon Abdurakhmanov, Isroil Holdarov, Murod Juraev, and Agzam Turgunov.

According to government statements, almost 65,000 persons were eligible under the 2012 amnesty implemented in the first quarter of the year. The vast majority of individuals had cases dismissed in the investigative phase or received reduced

sentences if already imprisoned, but 2,095 individuals were released from incarceration.

Local prison authorities have considerable discretion in determining who qualifies for release as they determine whether a prisoner is “following the way of correction” or “systematically violating” the terms of incarceration. Officials often cited “violation of internal prison rules” as a reason for denying amnesty and for extending sentences. For example, in October, according to family members and Ezgulik, prison officials reportedly transferred human rights activist Abdurasul Khudoynazarov to a new penitentiary facility and extended his incarceration for three years for violating the internal prison rules by possessing a razor blade. Officials often determined that political and religious prisoners were ineligible for amnesty based on these provisions.

e. Denial of Fair Public Trial

Although the constitution provides for an independent judiciary, the judicial branch often took direction from the executive branch.

Under the law the president appoints all judges for renewable five-year terms. Removal of Supreme Court judges must be confirmed by parliament, which generally complied with the president’s wishes.

Trial Procedures

The criminal code specifies a presumption of innocence. There are no jury trials. Most trials officially are open to the public, although access was sometimes restricted. Judges may close trials in exceptional cases, such as those involving state secrets, or to protect victims and witnesses. As in the previous year, judges generally permitted international observers to observe proceedings without requiring written permission from the Supreme Court or court chairman. Authorities generally announced trials only one or two days before they began, and hearings frequently were postponed numerous times.

A panel of one professional judge and two lay assessors, selected by committees of worker collectives or neighborhood committees, generally presided over trials. The lay judges rarely spoke, and the professional judge usually accepted prosecutor recommendations on procedural rulings and sentencing.

Defendants have the right to attend court proceedings, confront witnesses, and present evidence, but judges declined defense motions to summon additional witnesses or to enter into the record evidence supporting the defendant. In the vast majority of criminal cases brought to court, the verdict was guilty. Defendants have the right to hire an attorney, and the system worked reasonably well with the exception of some human rights activists, who encountered difficulties finding lawyers to represent them. The government provides legal counsel without charge when necessary. According to reports, state-appointed defense attorneys routinely acted in the interest of the government rather than of their clients because of their reliance on the state for a livelihood.

By law a prosecutor must request an arrest order from a court, but it was rare for a court to deny such a request. Prosecutors have considerable power after obtaining an arrest order: they direct investigations, prepare criminal cases, recommend sentences to judges, and have a right to appeal court decisions. The prosecutor decides whether a suspect is released on bail or stays in pretrial detention after formal charges are filed. Although the criminal code specifies a presumption of innocence, a prosecutor's recommendations generally prevailed. If a judge's sentence does not correspond with the prosecutor's recommendation, the prosecutor may appeal the sentence to a higher court. Judges often based their verdicts solely on confessions and witness testimony, which may be extracted through abuse, threats to family members, or other means of coercion. Legal protections against double jeopardy were not applied.

The law provides a right of appeal to all defendants, but appeals rarely resulted in reversals of convictions. In some cases, however, appeals resulted in reduced or suspended sentences.

Defense attorneys may access government-held evidence relevant to their clients' cases once the initial investigation is completed, the prosecutor files formal charges, and the case is passed to the criminal court. There is an exception, however, for evidence that contains information that if released could pose a threat to state security. In the past courts invoked the state security exception, leading to complaints that its primary purpose was to allow prosecutors to avoid sharing evidence with defense attorneys. In many cases prosecution was based solely upon defendants' confessions or incriminating testimony from state witnesses, particularly in cases involving those accused of religious extremism. Lawyers may, and occasionally did, call on judges to reject confessions and investigate claims of torture. Judges often did not respond to such claims or dismissed them as groundless. Courts failed to properly investigate allegations of torture and

frequently alleged in verdicts that defendants cited claims of torture in order to avoid criminal responsibility.

On August 6, the Karshi Municipal Criminal Court convicted Hasan Choriev, the father of “Birdamlik” opposition movement leader Bahodir Choriev, of rape and sentenced him to 62 months in prison. On August 20, the Kashkadaryo Region Criminal Court upheld the verdict. Authorities detained Hasan Choriev on June 17 and held him without access to his family or chosen lawyer throughout the process. Family members were unable to attend the trials or obtain a copy of the verdicts.

Political Prisoners and Detainees

Most international and domestic human rights organizations estimated that authorities held hundreds of prisoners on political grounds, but some groups asserted that the number was in the thousands. The government asserted that these individuals were convicted for violating the law. Officials released three high-profile prisoners--Abdubannob Akhmedov, Mamadali Makhmudov, and Gulnaza Yuldasheva--during the year. Family members of several political prisoners reported abuse in prison and deterioration of the prisoners’ health.

On September 24, a court in Bukhara Region sentenced 60-year-old farmer Bobomurod Razzokov, head of the Bukhara branch of Ezgulik, to four years in prison for allegedly facilitating the trafficking of a woman into prostitution. Ezgulik maintained the charges were politically motivated by his human rights activities, while the government, citing testimony from the alleged victim, insisted that Razzokov committed the crimes of which he was accused.

The government reported that on February 21 it released from prison Erkin Kuziev, head of the Ezgulik branch office in the Uzbekistan District of Fergana Region. In 2011 a court had found him guilty of fraud and facilitating bribery and sentenced him to 38 months in prison.

Civil Judicial Procedures and Remedies

Although the constitution provides for it, the judiciary is not independent or impartial in civil matters. Citizens may file suit in civil courts, if appropriate, on cases of alleged human rights violations by officials, excluding investigators, prosecutors, and judges, who fall under different legal procedures. There were isolated reports that bribes to judges influenced civil court decisions.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

Although the constitution and law forbid such actions, authorities did not respect prohibitions against arbitrary interference. The law requires that prosecutors approve requests for a search warrant for electronic surveillance, but there is no provision for judicial review of such warrants.

There were reports that police and other security forces entered the homes of human rights activists and members of some religious groups without a warrant. On multiple occasions members of Protestant and other minority churches who held worship services in private homes reported that armed security officers raided services and detained and fined church members for religious activity deemed illegal under the administrative or criminal code. Among such incidents were raids that occurred in Samarkand in February; Nukus, Tashkent, and Mubarek (Kashkardaryo Region) in March; and in the village of Tuyabuguz in Urtachirchik District of Tashkent Region in June.

Human rights activists and political opposition figures generally assumed that security agencies covertly monitored their telephone calls and activities.

The government continued to use an estimated 12,000 neighborhood committees (mahallas) as a source of information on potential extremists. Committees served varied social support functions, but they also functioned as a link among local society, government, and law enforcement. Mahalla committees in rural areas tended to be more influential than those in cities.

There continued to be credible reports that police, employers, and mahalla committees harassed family members of human rights activists. Examples included harassment directed against family members of human rights activists Larisa Grigoriyeva, Tatyana Dovlatova, Adelaida Kim, and disability rights activist Nargis Ziyavatdinova.

Section 2. Respect for Civil Liberties, Including:**a. Freedom of Speech and Press**

The constitution and law provide for freedom of speech and press, but the government did not respect these rights, severely limiting freedom of expression.

Freedom of Speech: The law restricts criticism of the president, and public insult to the president is a crime punishable by up to five years in prison. The law specifically prohibits publication of articles that incite religious confrontation and ethnic discord or that advocate subverting or overthrowing the constitutional order.

Press Freedoms: The law holds all foreign and domestic media organizations accountable for the accuracy of their reporting, prohibits foreign journalists from working in the country without official accreditation, and requires that foreign media outlets be subject to mass media laws. The government prohibits the promotion of religious extremism, separatism, and fundamentalism as well as the instigation of ethnic and religious hatred. It bars legal entities with more than 30 percent foreign ownership from establishing media outlets in the country.

Articles in state-controlled newspapers reflected the government's viewpoint. The main government newspapers published selected international wire stories. The government allowed publication of a few private newspapers with limited circulation containing advertising, horoscopes, and some substantive local news, including infrequent stories critical of government socioeconomic policies.

The government used large-circulation tabloids such as *Darakchi* and *Bekajon* as platforms to publish articles that criticized lower-level government officials or discredited "Western" ideas such as mass culture and globalization.

The government published news stories on the official internet sites of various ministries. A few purportedly independent websites consistently reported the government's viewpoint. Government-owned media such as the UzA and Jahon Information Agencies frequently carried reports about reforms or visits to the country in which foreign experts' comments were misquoted or embellished.

In September state television station O'zbekiston broadcast a report criticizing privately owned newspapers for publishing articles that directly or indirectly promote indecency, popular culture, sex, alcohol, tobacco, pornography, alien values, cruelty, and illiteracy.

Violence and Harassment: Police and security services subjected print and broadcast journalists to arrest, harassment, intimidation, and violence, as well as to bureaucratic restrictions on their activity.

As in past years, the government harassed journalists from state-run and independent media outlets in retaliation for their contact with foreign diplomats,

specifically questioning journalists about such contact. Some journalists refused to meet with foreign diplomats face-to-face because doing so in the past resulted in harassment and questioning by the NSS.

Journalists, ostensibly from state television stations such as NTT, verbally confronted human rights activists monitoring court proceedings. These same individuals also harassed foreign diplomats who were attending court hearings.

Censorship or Content Restrictions: Journalists and senior editorial staff in state media organizations reported that there were officials whose responsibilities included censorship. In many cases the government placed individuals as editors in chief with the expressed intent to serve as the main censor for a particular media outlet. There continued to be reports that government officials and employers provided verbal directives to journalists to refrain from covering certain events sponsored by foreign embassies and in some cases threatened termination for noncompliance. As in past years, there were reports that regional television outlets broadcast some moderately critical stories on local issues, such as water, electricity, and gas shortages as well as corruption and pollution.

The government continued to refuse Radio Free Europe/Radio Liberty, Voice of America, and BBC World Service permission to broadcast from within the country, although the websites of Voice of America and the BBC were periodically accessible within the country. The government also continued to use accreditation rules to deny foreign journalists and media outlets, as well as international NGOs, the opportunity to work in the country.

Government security services and other offices regularly directed publishers to print articles and letters under fictitious bylines and gave explicit instructions about the types of stories permitted for publication. There was often little distinction between the editorial content of a government and a privately owned newspaper. Journalists engaged in little investigative reporting. Widely read tabloids occasionally published articles that presented mild criticism of government policies or discussed some problems that the government considered sensitive, such as trafficking in persons.

Libel Laws/National Security: The criminal and administrative codes impose significant fines for libel and defamation. The government used charges of libel, slander, and defamation to punish journalists, human rights activists, and others who criticized the president or the government.

In November authorities brought charges against *Novosti Uzbekistana* for “consciously promoting terrorism” and banned its publication. The charges related to a picture that the newspaper published in its October 10 edition. The file photograph, taken from the internet for an article about the Andijon local government, reportedly showed armed individuals during the 2005 Andijon events.

Internet Freedom

The government generally allowed access to the internet, including social media sites. Internet service providers, allegedly at the government’s request, routinely blocked access to websites or certain pages of websites that the government considered objectionable. The government blocked several domestic and international news websites and those operated by opposition political parties.

The media law defines websites as media outlets, requiring them, as is the case with all local and foreign media, to register with the authorities and provide the names of their founder, chief editor, and staff members. Websites are not required to submit to the government hard copies of publications, as is required of traditional media outlets.

According to government statistics, approximately 33 percent of individuals in the country used the internet as of the first quarter of the year. Several active online forums allowed registered users to post comments and read discussions on a range of social problems. In order to become a registered user in these forums, individuals must provide personally identifiable information. It was not clear whether the government attempted to collect this information.

A decree requires that all websites seeking the “.uz” domain must register with the state Agency for Press and Information. The decree generally affects only government-owned or government-controlled websites. Opposition websites and those operated by international NGOs or media outlets tended to have domain names registered outside the country.

The independent Olam.uz website resumed its operations in August after an eight-month break reportedly caused by “technical problems.” Other independent media outlets reported, however, that the disruption stemmed from criminal charges that authorities brought against Olam.uz’s staff for copyright violations, treason, and espionage, and they alleged that the charges were politically motivated.

Some human rights activists believed that their e-mail was monitored by the government, but there was no corroborating evidence to support those claims.

Academic Freedom and Cultural Events

The government continued to limit academic freedom and cultural events. Authorities occasionally required department head approval for university lectures or lecture notes, and university professors generally practiced self-censorship. Numerous students reported that universities taught mandatory courses on books and speeches of the president and that missing any of these seminars constituted grounds for expulsion.

Although a decree prohibits cooperation between higher educational institutions and foreign entities without the explicit prior approval of the government, foreign institutions often were able to obtain such approval by working with the Ministry for Foreign Affairs, especially for foreign language projects. Some school and university administrations, however, continued to pressure teachers and students to refrain from participating in conferences sponsored by diplomatic missions.

In October the “Uzbeknavo” Variety Arts Association revoked the license of singer Jasur Umirov, reportedly for performing songs that were alien to national values and morals and not in accordance with the national mentality.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution and law provide for freedom of assembly, but the government often restricted this right. Authorities have the right to suspend or prohibit rallies, meetings, and demonstrations for security reasons. The government often did not grant the permits required for demonstrations. Citizens are subject to large fines for violating procedures concerning the organizing of meetings, rallies, and demonstrations or for facilitating unsanctioned rallies, meetings, or demonstrations by providing space or other facilities or materials.

Authorities dispersed and occasionally detained persons who were involved in peaceful protests, and they sometimes pressed administrative charges as a result of protest actions. Among many examples was the July 3 detention in Karshi of activists Elena Urlaeva, Malohat Eshonkulova, and five members of the Choriev family as they sought to demonstrate against the arrest of Hasan Choriev. On July

6, a judge found all seven individuals guilty of “violating the procedures for organizing or conducting gatherings, meetings, street manifestations, or protests” and fined them between five and six million soum (\$2,400-\$2,900).

Freedom of Association

While the law provides for freedom of association, the government continued to restrict this right. The government sought to control NGO activity and expressed concerns about internationally funded NGOs and unregulated Islamic and minority religious groups. The operating environment for independent civil society, in particular human right defenders, remained restrictive. Activists reported increased government control and harassment and speculated that this increase may be related to parliamentary and presidential elections scheduled for the end of 2014-early 2015.

There are legal restrictions on the types of groups that may be formed, and the law requires that all organizations be registered formally with the government. The law allows for a six-month grace period for new organizations to operate while awaiting registration from the Ministry of Justice, during which time the government officially classifies them as “initiative groups.” Several NGOs continued to function as initiative groups for periods longer than six months.

NGOs that intend to address sensitive issues such as HIV/AIDS or refugee problems often faced increased difficulties in obtaining registration. The government allowed nonpolitical associations and social organizations to register, but complicated rules and a cumbersome bureaucracy made the process difficult and allowed opportunities for government obstruction. The government compelled most local NGOs to join a government-controlled NGO association that allowed the government considerable oversight over the NGOs’ funding and activities. The degree to which NGOs were able to operate varied by region because some local officials were more tolerant of NGO activities, particularly when coordinated with government agencies. Civil society activists in some regions continued to report more willingness by local officials to cooperate following a 2010 speech by the president on the need to expand democratization and strengthen civil society.

The administrative liability code imposes large fines for violations of procedures governing NGO activity as well as for “involving others” in illegal NGOs. For example, on April 22, the Sirdaryo Region Criminal Court convicted in absentia Isroil Rizaev, the chairman of the Ezgulik Sirdaryo Region branch, of violating the rules governing the activities of NGOs and fined him 5.6 million soum (\$2,700).

The court sanctioned Rizaev for engaging in activities without registration, but Ezgulik stated that Rizaev had unsuccessfully submitted 11 requests for registration to the local Ministry of Justice office in the previous two years. On May 24, the verdict was upheld on appeal.

The law does not specify whether “illegal NGOs” are those the government suspended or closed or those that were unregistered. The administrative code also imposes penalties against international NGOs for engaging in political activities, activities inconsistent with their charters, or activities the government did not approve in advance.

The government continued its efforts to enforce the 2004 banking decree that, although ostensibly designed to combat money laundering, also complicated efforts by registered and unregistered NGOs to receive outside funding. The Ministry of Justice requires NGOs to submit detailed reports every six months on any grant funding received, events conducted, and events planned for the next period. Leaders of NGOs may be fined for conducting events without explicit permission from the ministry. The fine is several times higher than those for some criminal offenses.

Parliament’s Public Fund for the Support of Nongovernmental, Noncommercial Organizations, and Other Civil Society Institutions continued to conduct grant competitions to implement projects that primarily targeted socioeconomic issues. In August the fund awarded approximately 1.3 billion soum (\$628, 000) to 101 nongovernmental and noncommercial organizations. Some civil society organizations, however, criticized the fund for primarily supporting government-organized NGOs. The Finance Ministry required humanitarian aid and technical assistance recipients to submit information about their bank transactions.

The law criminalizes membership in organizations the government broadly deems “extremist.” The law also prohibits the Islamist political organization Hizbut-Tahrir, stating it promotes hate and condones acts of terrorism.

c. Freedom of Religion

See the Department of State’s *International Religious Freedom Report* at www.state.gov/j/drl/irf/rpt/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution and laws provide for freedom of internal movement, foreign travel, emigration, and repatriation, but the government limited these rights, in particular through the continued requirement for citizens to receive an exit visa for foreign travel.

In-country Movement: The government at times delayed domestic and foreign travel and emigration during the visa application process. The government occasionally closed borders around national holidays due to security concerns. Permission from local authorities is required to move to Tashkent City or Tashkent Region, although authorities rarely granted such permission without the payment of bribes.

Foreign Travel: Citizens are required to have a domicile registration stamp in their passport before traveling domestically or leaving the country. The government also requires citizens and foreign citizens permanently residing in the country to obtain exit visas for foreign travel or emigration, although it generally grants the visas. In 2011 the Cabinet of Ministers adopted amendments to exit visa procedures that allow authorities to deny travel on the basis of “information demonstrating the inexpediency of the travel.” According to civil society activists, these provisions were poorly defined and such decisions could not be appealed.

Ostensibly in an effort to combat trafficking in persons, the government introduced regulations in 2011 that require male relatives of women between the ages of 18 and 35 to submit a statement pledging that the women would not engage in illegal behavior, including prostitution, while abroad.

As in past years, although the law prescribes that a decision should be reached within 15 days, there were reports that the government delayed exit visas for human rights activists and independent journalists to prevent their travel abroad. For example, authorities in October failed to provide an exit visa within the legally foreseen timeframe to human rights activist Surat Ikramov. Authorities also continued to refuse to issue an exit visa to artist Vyacheslav Akhunov, known for his provocative performances in which he criticized government policies. Violating the rules for exiting or entering the country is punishable by imprisonment of five to 10 years.

Citizens generally continued to be able to travel to neighboring states. Land travel to Afghanistan remained difficult, because citizens needed permission from the NSS.

The government requires hotels to register foreign visitors with the government on a daily basis. Foreigners who stay in private homes are required to register their location within three days of arrival. Government officials closely monitored foreigners in border areas, but foreigners generally could move within the country without restriction.

Emigration and Repatriation: The law does not provide for dual citizenship. In theory returning citizens must prove to authorities that they did not acquire foreign citizenship while abroad or face loss of citizenship. Citizens who possessed dual citizenship generally traveled without impediment.

The government noted that citizens residing outside the country for more than six months could voluntarily register with the country's consulates. As in the previous year, there were no reports that failure to register rendered stateless those citizens residing abroad or children born abroad.

Protection of Refugees

Access to Asylum: The laws do not provide for the granting of asylum or refugee status, and the government has not established a system for providing protection to refugees.

Refoulement: The government provided some protection against the expulsion or return of refugees to countries where their lives or freedom would be threatened due to their race, religion, nationality, membership in a particular social group, or political opinion.

In the absence of a permanent UN High Commissioner for Refugees (UNHCR) office, the UN Development Program (UNDP) continued to assist with monitoring and resettlement processing of 82 pending (predominantly Afghan) refugee cases involving 141 individuals; such cases predated the closure of the UNHCR in 2006. During the year the UNDP and temporary duty UNHCR staff processed 17 cases involving 39 persons. Because the UNDP does not process new claims or make refugee status determinations, it refers potential applicants to UNHCR offices in neighboring countries.

The government does not consider UNHCR mandate certificates as the basis for extended legal residence, and persons carrying such certificates must apply for either tourist visas or residence permits or face possible deportation. Residence

permits were difficult to obtain, and there were cases in which law enforcement bodies revoked residence permits, forcing refugees to leave the country. The government considered UNHCR mandate refugees from Afghanistan and Tajikistan to be economic migrants, and officials occasionally subjected them to harassment and bribery. Most refugees from Tajikistan were ethnic Uzbeks. Unlike refugees from Afghanistan, those from Tajikistan were able to integrate into the local communities, and the local population supported them.

Stateless Persons

Some refugees from Tajikistan were officially stateless or faced the possibility of becoming officially stateless, as many carried only old Soviet passports rather than Tajik or Uzbek passports. Children born to two stateless parents can receive the country's citizenship only if both parents have a residence permit.

Although official data on the number of stateless persons were not available, authoritative human rights activists estimated that there were 3,000 stateless persons in Khorezm Region and Karakalpakstan. Most of these individuals reportedly were women who had married and lived in neighboring Turkmenistan prior to the country's independence in 1991. There also were reports of stateless populations in Sirdaryo and Kashkadaryo Regions.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

While the constitution and law provide citizens with the right to change their government peacefully, the government severely restricted freedom of expression and suppressed political opposition. The president oversaw a highly centralized government through sweeping decree powers, primary authority for drafting legislation, and control over government appointments, most of the economy, and the security forces.

Elections and Political Participation

Recent Elections: Following 2007 elections that according to the OSCE monitoring group did not meet international democratic standards, President Karimov began a third term. The constitution prohibits a president from seeking a third term in office, an apparent contradiction that the government did not address publicly. The OSCE's limited election observation mission noted that, while there were more candidates than in previous elections, all candidates publicly endorsed

President Karimov's policies and that there were procedural problems and irregularities in vote tabulation.

Political Parties: The law allows independent political parties, but the Ministry of Justice has broad powers to oversee parties and to withhold financial and legal support to parties that they judge as being opposed to the government. With parliamentary elections anticipated in December 2014, human rights activists called attention to the government's unwillingness to register opposition political parties, thereby restricting their ability to participate in the elections.

The law makes it difficult for genuinely independent political parties to organize, nominate candidates, and campaign. A new party must have the signatures of 20,000 individuals living in at least eight of the country's regions in order to register. The procedures to register a candidate are burdensome. The law allows the Justice Ministry to suspend parties for as long as six months without a court order. The government also exercised control over established parties by controlling their financing and media exposure.

The law prohibits judges, public prosecutors, NSS officials, members of the armed forces, foreign citizens, and stateless persons from joining political parties. The law prohibits parties that are based on religion or ethnicity; oppose the sovereignty, integrity, security of the country, or the constitutional rights and freedoms of citizens; promote war or social, national, or religious hostility; or seek to overthrow the government.

The government banned or denied registration to several political parties following the 2005 Andijon violence. Former party leaders remained in exile, and their parties struggled to remain relevant without a strong domestic base.

Participation of Women and Minorities: There were 33 women in the 150-member lower chamber of parliament, including speaker Dilorom Toshmammedova, and 15 women in the 100-member Senate, along with two women in the 28-member cabinet. During the 2009 parliamentary elections, more than 30 percent of candidates were women, following a recommendation from the UN Committee on the Elimination of Discrimination against Women.

There were 11 members of ethnic minorities in the lower house of parliament and 11 members of ethnic minorities in the Senate.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, but the government did not implement the law effectively. Although there were reports of an increased number of corruption-related arrests, officials continued to engage frequently in corrupt practices with impunity. The Ministry of Interior's Department for Combating Corruption, Extortion, and Racketeering and the Office of the Prosecutor General's Department for Combating Economic Crimes and Corruption are responsible for preventing, investigating, and prosecuting corruption cases.

Corruption: The Ministry of Interior reported that during the first eight months of the year, 958 government officials were censured for abuse of power, 29 of whom lost their jobs.

On January 30, the Tashkent Region Criminal Court sentenced Said-Ibrahim Saynazarov, the former deputy mayor of Angren, to nine years in prison for accepting a bribe to sell reduced-price flour set aside for poor families to a private bakery. During the year press and human rights contacts reported on the arrests of Hokim (regional mayor or governor) of Zarafshan Ilkhom Eshmirzaev, First Deputy Hokim of Jondor District of Bukhara Region Rakhmon Saidov, Hokim of Mirzo Ulugbek District of Tashkent Shavkatbek Irgashev, and Hokim of Mirishkor District of Kashkadaryo Region Dilmurod Abdiev. All were arrested for corruption or abuse of power.

Corruption among law enforcement personnel remained a problem. Police routinely and arbitrarily extorted bribes. In February the NSS arrested Bakhtiyor Abdullaev, an investigator with the Olmazor District Police Department in Tashkent, as he reportedly received a bribe of more than four million soum (\$2,000) from the relative of an individual under criminal investigation.

Whistleblower Protection: There are no legal provisions for protection to public and private employees for making internal disclosures or lawful public disclosures of evidence of illegality, such as the solicitation of bribes or other corrupt acts, gross waste or fraud, gross mismanagement, abuse of power, or substantial and specific dangers to public health and safety.

Financial Disclosure: Government officials are required to disclose only income from outside employment.

Public Access to Information: The public did not generally have access to government information, including the income of government officials from

outside employment. The government seldom reported information normally considered in the public domain, although many government ministries and bodies had an internet presence that offered some information.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic human rights groups operated in the country, although the government often hampered their activities by creating fear of official retaliation. The government frequently harassed, arrested, and prosecuted human rights activists. As at times in past years, there were reports that activists were under strict control of law enforcement officers around the September 1 Independence Day holiday. For example, law enforcement reportedly prevented a number of human rights defenders from participating in manifestations in the September 1-10 period that involved wearing white articles of clothing and taking photographs in public places.

The government officially acknowledged two domestic human rights NGOs: Ezgulik and the Independent Human Rights Organization of Uzbekistan. Others were unable to register but continued to function at both the national and local levels.

Organizations that attempted to register in previous years and remained unregistered included the Humanitarian Legal Center, Human Rights Society of Uzbekistan, the Expert Working Group, and Mazlum (Oppressed). These organizations did not exist as legal entities but continued to function, despite difficulty renting offices and conducting financial transactions. They could not open bank accounts, making it virtually impossible to receive funds. Unregistered groups were vulnerable to government prosecution. In rare cases, however, government representatives participated with unregistered groups in certain events.

Government officials spoke informally with domestic human rights defenders, some of whom noted that they were able to resolve cases of human rights abuses through direct engagement with authorities.

The government required that NGOs coordinate their training sessions or seminars with government authorities. NGO managers believed that this amounted to a requirement for prior official permission from the government for all NGO program activities.

Police and security forces continued to harass domestic human rights activists and NGOs. Security forces regularly threatened and intimidated human rights activists to prevent their activities and dissuade them from meeting with foreign diplomats. Occasionally police and other government authorities ordered activists to cease contact with foreigners.

There continued to be occasional attacks against human rights activists.

According to government reports, in December 2012 the Yangiyul District Court sentenced Mirislom Mirsamadov to 11 years in prison in the July 2012 stabbing death of human rights defender Akromhodja Mukhitdinov.

Human rights defenders increasingly alleged that they were subject to spurious criminal and administrative charges and other retribution in response to their activism.

On August 23, the Gallaorol District Criminal Court in Jizzakh Region convicted 75-year-old activist Nabijon (aka Turaboy) Juraboev of extortion and fraud and sentenced him to five years in prison. The government charged Juraboev with allegedly extorting sums of up to 25,000 soum (\$12) from a number of individuals, but Jizzakh-based human rights activists who observed the court proceedings alleged that several witnesses recanted their testimony during the trial. The government denied that any of the witnesses withdrew their testimony.

On January 4, authorities freed activist Gulnaza Yuldasheva from prison on the basis of the annual amnesty act adopted in December 2012. The Yangiyul Criminal Court convicted Yuldasheva of extortion and sentenced her to two years in prison in July 2012; the sentence later was increased to seven years on appeal.

UN and Other International Bodies: The government continued to restrict the work of international bodies and severely criticized their human rights monitoring activities and policies.

Although the OSCE has been able to do only limited work on human rights problems since 2006, the government approved several proposed OSCE projects during the year, including in the “human dimension,” the human rights component of the OSCE’s work. During the year the OSCE conducted a number of training sessions on international human rights standards for police.

The government of Uzbekistan has not permitted a UN special mandate holder to monitor human rights issues in the country in more than 10 years.

Government Human Rights Bodies: The Human Rights Ombudsman’s Office stated that its goals included promoting observance and public awareness of fundamental human rights, assisting in shaping legislation to bring it into accordance with international human rights norms, and resolving cases of alleged abuse. The Ombudsman’s Office mediates disputes between citizens who contact it and makes recommendations to modify or uphold decisions of government agencies, but its recommendations are not binding. The Ombudsman’s Office received a total of 12,826 complaints in 2012, of which it “positively resolved” 452, and an additional 5,876 complaints in the first half of 2013.

The National Human Rights Center is a government agency responsible for educating the public and officials on the principles of human rights and democracy and for ensuring that the government complies with its international obligations to provide human rights information.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

The law and constitution prohibit discrimination on the basis of race, gender, disability, language, and social status. Nonetheless, societal discrimination against women and persons with disabilities existed, and child abuse persisted.

Women

Rape and Domestic Violence: The law prohibits rape, including rape of a “close relative,” but the criminal code does not specifically prohibit marital rape, and the courts did not try any known cases. Cultural norms discouraged women and their families from speaking openly about rape, and the press rarely reported instances.

The law does not specifically prohibit domestic violence, which remained common. While the law punishes physical assault, police often discouraged women from making complaints against abusive partners, and officials rarely removed abusers from their homes or took them into custody. Human rights contacts, however, reported greater willingness by local police and officials to address reports of domestic violence, including in Jizzakh Region and in the traditionally conservative Fergana Valley. Society considered the physical abuse of women to be a personal affair rather than a criminal act. Family members or

elders usually handled such cases, and they rarely came to court. Local authorities emphasized reconciling husband and wife, rather than addressing the abuse.

In contrast with past years, there were no reported cases in which women attempted or committed suicide as a result of domestic violence. Those active in women's issues suggested that there could be unreported cases, and there were no reliable statistics on the problem's extent. Observers cited as the usual reason for suicide conflict with a husband or mother-in-law, who by tradition exercise complete control over a wife. There were no government-run shelters or hotlines for victims of domestic abuse, and very few NGOs focused on domestic violence.

Sexual Harassment: The law does not explicitly prohibit sexual harassment, but it is illegal for a man to coerce a woman who has a business or financial dependency into a sexual relationship. Social norms and the lack of legal recourse made it difficult to assess the scope of the problem. During the year the government brought sexual harassment or rape charges against several individuals known to be at odds with the authorities or who reported human rights abuses.

Reproductive Rights: The government generally allowed couples and individuals to decide freely and responsibly the number, spacing, and timing of their children, and it granted access to information and the means to do so free from discrimination, coercion, and violence. There continued to be periodic media reports that the government directed doctors to sterilize women to control the birth rate and skew infant mortality data. Contacts in the human rights and health-care communities confirmed that there was anecdotal evidence suggesting that sterilizations without informed consent occurred, although it was unclear whether the practice was widespread and whether it was directed by senior government officials.

Contraception generally was available to men and women. In most districts maternity clinics were available and staffed by fully trained doctors, who gave a wide range of prenatal and postpartum care. There were reports that women in rural areas chose in greater numbers than in urban areas to give birth at home without the presence of skilled medical attendants.

Discrimination: The law prohibits discrimination based on gender, and the National Women's Committee exists to promote the legal rights of women. Women historically have held leadership positions across all sectors of society, although not with the same prevalence as men, and cultural and religious practices limited their effectiveness. The government provided little data that could be used

to determine whether women experienced discrimination in access to employment, credit, or pay equity for substantially similar work. The labor code prohibits women from working in as many industries as men.

Children

Birth Registration: Citizenship is derived by birth within the country's territory or from one's parents. The government generally registered all births immediately.

Medical Care: While the government provided equal subsidized health care for boys and girls, those without an officially registered address, such as street children and children of migrant workers, did not have access to government health facilities.

Child Abuse: Society generally considered child abuse to be an internal family matter, with little information available officially. In January members of the human rights community alleged the existence of an undisclosed juvenile detention facility in the Hamza district of Tashkent. According to these accounts, the government housed up to 50 minor children in the facility, which consisted of a large cement room without windows. The government denied the claims, stating that the facility was dedicated to individuals under administrative arrest and the homeless, did not house children, and operated in strict accordance with local laws.

Forced and Early Marriage: The law states that the minimum age for marriage is 17 for women and 18 for men, but a mayor of a district may lower the age by one year in exceptional cases. In April the president signed into law amendments that increase the punishments for violations of the marriage law. The Women's Committee was conducting a systematic awareness-raising campaign among the population about the harm caused by child marriage and early births. The committee regularly held public meetings with community representatives and girls in schools to raise awareness of the importance of education, self-reliance, financial independence, and the right to free choice. Child marriage had a prevalence rate of 7.2 percent. In some rural areas girls as young as 15 occasionally were married in religious ceremonies not officially recognized by the state.

Sexual Exploitation of Children: The law seeks to protect children from "all forms of exploitation." Involving a child in prostitution is punishable by a fine of 25 to 50 times the minimum salary and imprisonment for an unspecified length of time.

The minimum age for consensual sex is 16. The punishment for statutory rape is 15 to 20 years' imprisonment. The production, demonstration, and distribution of child pornography (involving persons younger than 21) is punishable by fine or by imprisonment for up to three years.

International Child Abductions: The country is a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. For country-specific information see travel.state.gov/content/childabduction/english/country/uzbekistan.html.

Anti-Semitism

Jewish leaders reported high levels of acceptance in society. There were no reports of anti-Semitic acts or patterns of discrimination against Jews. The Jewish community was unable to meet the registration requirements necessary to have a centrally registered organization, but there were eight registered Jewish congregations. Observers estimated the Jewish population at 10,000 persons, concentrated mostly in Tashkent, Samarkand, and Bukhara. Their numbers continued to decline due to emigration, largely for economic reasons.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/.

Persons with Disabilities

The law prohibits discrimination against persons with disabilities, but there was societal discrimination against those with disabilities.

According to official statistics, there were 750,000 persons with disabilities, but activists suggest that there may be as many as three million. The government continued its efforts to confirm the disability levels of citizens who received government disability benefits. Officially, authorities conducted the confirmations to ensure the legitimacy of disability payments, but unconfirmed reports suggested that authorities unfairly reduced benefits to some persons with disabilities in the process.

The law allows for fines if buildings, including private shops and restaurants, are not accessible, and the Ministry of Labor and Social Protection reported that there

were approximately 3,000 cases during the year when individuals or organizations were fined. The president signed into law in October changes that reduce the fine for failing to create the necessary conditions for persons with disabilities from 6.4-9.2 million soum (\$3,090-\$4,450) to 915,000-1.4 million soum (\$440-\$675). Disability activists reported that accessibility remained inadequate, noting, for example, that many of the high schools constructed in recent years had exterior ramps but no interior modifications to facilitate access by wheelchair users.

There were no reports during the year of persons being held at psychiatric hospitals despite showing no signs of mental disability.

The Ministry of Health controlled access to health care for persons with disabilities, and the Ministry of Labor and Social Protection facilitated employment of persons with disabilities. No information was available regarding patterns of abuse in educational and mental health facilities.

The labor law states that all citizens enjoy equal employment rights, but disability rights activists reported that discrimination occurred. Disability rights activists estimated that 90 percent of the country's disabled population was unemployed. The government indicated there were 17,000 jobs set aside for persons with disabilities. There were no government programs to ensure access to buildings, information, and communications, and activists reported particular difficulties with access. The only Braille signage newspaper, *In One Line*, reduced publications from once per month to two to four times a year due to financial difficulties. Activists reported that there were instances in which persons with disabilities were not provided sign language interpreters during police investigation and court hearings. Students studied Braille books published during Soviet times, and there were computers adapted for the vision-impaired population.

According to disability rights activists, of an estimated 96,000 children with disabilities, only 26 attended public schools while approximately 1,000 attended specialized schools. As of July the government stipulated that 18,460 children attended 89 specialized schools with an additional 9,095 children enrolled in preschools. In September the government adopted a decision adding the Tashkent and Samarkand Specialized Industrial Professional Colleges to the list of institutions able to provide secondary special and professional education to persons with disabilities.

National/Racial/Ethnic Minorities

The constitution states that all citizens are equal, regardless of ethnic background, and provides for equal protection by the courts to all residents, irrespective of national, racial, or ethnic origin. The country has significant Tajik (5 percent) and Russian (5.5 percent) minorities and smaller Kazakh and Kyrgyz minorities. There is also a small Romani population in Tashkent, estimated at fewer than 50,000 individuals. Complaints of societal violence or discrimination against members of these groups were rare. There were reports of cases in which ethnic Tajik residents in the country had their citizenship revoked upon allegations that they had fraudulently obtained the country's passports. In one case authorities allegedly used this as a pretext to harass individuals for their nongovernmental activities.

The constitution also provides for the right of citizens to work and to choose their occupations. Although the law prohibits employment discrimination on the basis of ethnicity or national origin, ethnic Russians and other minorities occasionally expressed concern about limited job opportunities. Officials reportedly reserved senior positions in the government bureaucracy and business for ethnic Uzbeks, although there were numerous exceptions.

The law does not require Uzbek language ability to obtain citizenship, but language often was a sensitive issue. Uzbek is the state language, and the constitution requires that the president speak it. The law also provides that Russian is "the language of interethnic communication."

Societal Abuses, Discrimination, and Acts of Violence Based on Sexual Orientation and Gender Identity

Sexual relations between men are punishable by up to three years' imprisonment. Although there have not been any known arrests or convictions under this criminal provision since 2003, according to the lesbian, gay, bisexual, and transgender (LGBT) community, police and other law enforcement personnel used the threat of arrest or prosecution to extract heavy bribes from gay men. The law does not criminalize same-sex sexual activity between women.

Same-sex sexual activity is generally a taboo subject in society, and there were no known LGBT organizations. There was also no known violence against the LGBT community. There were no reports of official or societal discrimination based on sexual orientation or gender identity in employment, housing, statelessness, or access to education or health care, but this may be attributed to the social taboo against discussing same-sex relationships rather than to equality in such matters.

Other Societal Violence or Discrimination

According to statistics provided to the press by the Republican Center for Combating AIDS, there were 21,542 HIV-positive individuals in the country as of January 1. Persons with HIV reported social isolation by neighbors, public agency workers, health personnel, law enforcement officers, landlords, and employers after their HIV status became known. The military summarily expelled recruits in the armed services found to be HIV-positive. The government's restrictions on local NGOs left only a handful of functioning NGOs to assist and protect the rights of persons with HIV/AIDS.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law, including related regulations and statutory instruments, generally provides the right of workers to form and join independent unions and bargain collectively. The law does not make clear that only in the absence of a trade union in an enterprise may other bodies elected by workers be given the authority to bargain collectively. The law neither provides for nor prohibits the right to strike. The law prohibits antiunion discrimination. Volunteers in public works and workers employed by individuals without documented contracts do not have legal protection.

Workers generally did not exercise their right to form and join unions due to fear that attempts to create alternative unions would be quickly repressed. Unions remained centralized and dependent on the government. The state-run Board of the Trade Union Federation of Uzbekistan incorporates more than 35,800 primary organizations and 14 regional trade unions, with official reports of 60 percent of employees in the country participating. Leaders of the federation were appointed by the President's Office rather than elected by the union board. All regional and industrial trade unions at the local level were state managed. There were no independent unions.

In March police in the Uchtepa District of Tashkent detained activists Abdullo Tojiboy-ogli and Nuratdin Jumaniyazov as they advocated for the creation of an independent union of day laborers. A court fined Tojiboy-ogli and Jumaniyazov 240,000 soum (\$115) for allegedly "disobeying the legal orders of police."

Unions and their leaders were not free to conduct activities without interference from the employer or from government-controlled institutions. Unions were government-organized institutions with little bargaining power aside from some influence on health and work safety issues, and workers did not exercise collective bargaining rights. For example, the Ministry of Labor and Social Protection and the Ministry of Finance, in consultation with the Council of the Trade Union Federation, set wages for government employees. In the small private sector, management established wages or negotiated them individually with persons who contracted for employment. There was no state institution responsible for labor arbitration.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor, including by children, except as legal punishment for such offenses as robbery, fraud, or tax evasion or as specified by law. The government did not effectively enforce such laws.

Government-compelled forced labor occurred during the cotton harvest, when authorities applied varying amounts of pressure on many governmental institutions, businesses, and educational institutions to organize college and lyceum students (15- to 18-year-old students completing the last three years of their secondary education), teachers, medical workers, government personnel, military personnel, and nonworking segments of the population to pick cotton in many parts of the country. The scope of such mobilizations differed significantly from region to region, especially regarding the 15-18 year old bracket. For the second year in a row, the government forbade the mobilization of children under 15 and effectively enforced this decree.

Credible reporting suggested that the use of forced mobilization of adult state workers during the cotton harvest continued. Authorities continued to expect many teachers and school administrators to participate in the harvest, either as supervisors or by picking cotton themselves. The majority of schools remained open full time, albeit with reports of staff shortages that affected the number of classes held. There continued to be reports that adults who did not make their quotas were subject to ridicule or abuse by local administrators or police. The loss of public sector workers during the cotton harvest adversely affected communities, as medical procedures often were deferred and essential public services delayed.

There were reports that teachers, students (including children), employees in private businesses, and others were forced by the government to work in construction, agriculture, and cleaning parks.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/.

c. Prohibition of Child Labor and Minimum Age for Employment

Laws to protect children from exploitation in the workplace provide for both criminal and administrative sanctions against violators of the child labor laws, although these laws were not effectively enforced.

The national labor code establishes the minimum working age at 16 years and provides that work must not interfere with the studies of those younger than 18. The law establishes a right to part-time light work beginning at age 15, and children with permission from their parents may work a maximum of 24 hours per week when school is not in session and 12 hours per week when school is in session. The law does not allow 14-year-old children to be involved with "light work," even if it does not interfere with education or hinder the health or development of the child, but this provision was not always observed. Children between the ages of 16 and 18 may work 36 hours per week while school is out of session and 18 hours per week while school is in session. Decrees adopted in 2009 and 2010, respectively, stipulate a list of hazardous activities forbidden for children younger than 18 and prohibit employers from using children to work under a list of hazardous conditions, including work underground, underwater, at dangerous heights, and with dangerous equipment in the manual harvesting of cotton. Children were employed in agriculture, in family businesses such as bakeries and convenience stores, and as street vendors.

The government's 2008 national action plan called for an end to the worst forms of child labor, including forced labor, but none of its goals were reached. In contrast with past years, the government allowed the International Labor Organization (ILO) to monitor child labor comprehensively in the cotton sector.

The law does not explicitly provide authority for inspectors from the Ministry of Labor and Social Protection to enforce the child labor laws. Enforcement of child labor laws is under the jurisdiction of the Ministry of Labor and Social Protection, the prosecutor general, the Ministry of Interior, and the Ministry of Interior's general criminal investigators. As in the previous year, the Office of the Prime

Minister took the lead role in coordinating enforcement of its decree to keep children out of cotton fields. Local officials often participated by forming monitoring groups to ensure that parents and schools did not allow their children to pick cotton. It was unclear whether the Ministry of Interior conducted inspections in the agricultural sector. There were no known prosecutions for child labor during the year.

Children worked in the cultivation and picking of cotton. Many thousands of college, lyceum, and university students between the ages of 15 and 18 worked in the cotton fields during the annual harvest as a result of government mobilization. While pressure to use forced adult or forced child labor in the cotton sector continued to be prevalent in some regions, other regions attracted a consenting adult work force. During the fall harvest, some local administrators closed colleges and universities and transported students to work in the cotton fields for up to 20 days.

Although the majority of students appeared to be over 14, a few younger students were observed by domestic human rights organizations. There were isolated reports of some students as young as 10 working in the fields, although it did not appear that these cases were the results of widespread mobilizations. Authorities generally took steps to address these reports. Observers reported that older students worked up to 10 hours per day and frequently were housed in tents or barracks away from their families.

There were reports of 10 deaths during the annual cotton harvest, although none was the direct result of official malfeasance. For example, in September the independent press reported that 16-year-old Mukhlisa Rajabova, a second-year student at the Agroindustrial College in Karshi, died of electrocution after accidentally touching a live wire as she participated in the cotton harvest in the “Khilol” farm in Kashkadaryo Region.

Students and adults typically earned between 178 and 220 soum (\$.09 to \$.11) per kilogram (2.2 pounds) of cotton picked. Younger students were expected to pick 20 to 40 kilograms of cotton per day, while older students and adults were expected to pick 50 to 70 kilograms per day. The resulting daily wage was between 3,600 and 8,800 soum (\$1.75 to \$4.25) for younger students and 8,900 to 15,400 soum (\$4.30 to \$7.40) per day for older students. As in past years, there continued to be individual reports that educational institutions threatened to expel students who did not participate in the harvest or required students to sign statements indicating their “voluntary” participation in the harvest.

Working conditions varied greatly by region. There continued to be scattered reports of inadequate food and lodging for the children, and there were also reports of students without access to clean drinking water.

The ILO's report monitoring child labor in the 2013 cotton harvest was released in December. The report noted that children younger than 14 were not observed in the cotton fields, and ILO monitors confirmed that 53 children either 16 or 17 years of age were found picking cotton. The report also noted that this number was likely an underestimate, as there were some individuals found working in the cotton fields whose ages could not be verified. There was no information as to whether these 53 children were picking cotton willingly or as a result of coercion. The ILO monitoring mission did not find a systematic use of forced child labor but found specific cases and "implementation" gaps.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/programs/ocft/tda.htm.

d. Acceptable Conditions of Work

The national minimum monthly wage, used primarily as an index to calculate salaries in the public sector as well as various taxes and duties, was 79,590 soum (\$38.45) per month between December 2012 and August 2013. On August 15, it was raised 15 percent to 91,530 soum (44.20), and on December 15 it was raised an additional 5 percent to 96,105 soum (46.40). Officials reported the poverty level as consumption of fewer than 2,100 calories per day, but the government did not publish any indicators of poverty level. According to the latest available data from government and alternative sources, 17 percent of the population lived below the poverty level, 4.8 percent were unemployed, and approximately 60 percent of the employed population had low-productivity and low-income jobs.

The law establishes a standard workweek of 40 hours and requires a 24-hour rest period. The law provides overtime compensation as specified in employment contracts or agreed to with an employee's trade union and can be implemented in the form of additional pay or leave. The law states that overtime compensation should not be less than 200 percent of the employee's average monthly salary rate. Additional leave time should not be less than the length of actual overtime work. An employee may not work more than 120 hours of overtime per year, but this limitation was not generally observed, particularly in the public sector. The law prohibits compulsory overtime.

The Ministry of Labor and Social Protection establishes and enforces occupational health and safety standards in consultation with unions. Reports suggested that enforcement was not effective. Although regulations provide for safeguards, workers in hazardous jobs often lacked protective clothing and equipment. Labor inspectors conducted routine inspections of small and medium-sized businesses once every four years and inspected larger enterprises once every three years. In addition the ministry or a local governor's office can initiate a selective inspection of a business, and special inspections are conducted in response to accidents or complaints.

Approximately five to eight labor inspectors staffed offices in each of the country's 14 administrative units, and there also were specialized offices for major industries, such as construction, mining, and manufacturing. Labor inspectors usually focused on the private sector, while inspections of state-owned enterprises were considered pro forma. Penalties reportedly were often selective, and in many cases employers reportedly were able to mitigate penalties through informal agreements with inspectors. According to the law, health and safety standards should be applied in all sectors. The law remained unenforced in the informal economy, where employment was usually not documented. During the year the Ministry of Labor and Social Protection, in cooperation with the tax authorities, inspected all private clinics to target the widespread practice of employing specialists without employment contracts.

In accordance with the Law on Workers' Safety, workers legally may remove themselves from hazardous work if an employer failed to provide adequate safety measures for the job. Workers generally did not exercise this right, as it was not effectively enforced, and employees feared retribution by employers. A 2009 law requires employers to insure against civil liability for damage caused to the life or health of an employee in connection with a work injury, occupational disease, or other injury to health caused by the employee's performance on the job. No cases were reported under the law.

According to official sources, approximately 360,000 full-time employees (out of 12 million) received the minimum salary. In April the president signed an amendment to the labor code, raising the minimum monthly salary for full-time employees in the public sector from 91,530 soum (\$44.20) to approximately 230,000 soum (\$110). There were no current official statistics concerning the average monthly wage, but most experts estimated a figure of approximately 780,000 soum (\$375) before taxes. This level did not include wages in the

agricultural sector. Reliable data or estimates on actual average household income were not available.

The government and official media did not publish data on the number of employees in the informal economy. Many such employees had official part-time or low-income jobs. There were no effective government programs to provide social protections to workers in the informal economy. Violations of wage, overtime, and occupational health and safety standards were most common in the public sector.